



DECISION

Complaint No.:

POS/7081/2025/N-83

Name and address
of the complainant :

Mr. Naseer Illahi Bux s/o. Shaikh Bashir Ahmed,
R/o. House No. B-5, Street No.27,
D.C. Model Colony, Karachi.

Name of the Agency
Complained against :

Director, Anti-encroachment Force, Board of Revenue, Karachi

Name & Designation of
Investigating Officer :

Muhammad Naseer Jamali, Advisor-N

Subject :-

COMPLAINT AGAINST ANTI-ENCROACHMENT
OFFICIALS KARACHI ALLEGING ILLEGAL
DETENTION AND GETTING A BRIBE/RANSOM,
AMOUNTING TO RS.1,000,000/- FROM THE
COMPLAINANT

Complaint

Mr. Naseer Illahi Bux filed a complaint dated 12.09.2025 wherein he stated that he was called at Anti-Encroachment Station Gulshan-e-Iqbal Karachi on 17.06.2025. He appeared at Anti-Encroachment station alongwith his sons, named Abuzar and Muhammad Abu Bakar. He was kept in illegal detention at the Anti-Encroachment station by the officials of Anti-Encroachment Force. His sons approached a property dealer, named Adnan Ansari for his release who informed that he is nominated in a FIR No.2/2025 of land grabbing case alongwith 15 other persons filed by Mukhtiarkar Landhi Karachi. Mr. Adnan Ansari and 03 constables of Anti-encroachment Force with fake names of Nawaz, Sarfaraz and Najeeb demanded a bribe, amounting to Rs.1,500,000/- (one million, five hundred thousand) for his release. They informed that their Incharge Sub-Inspector (SHO) Anti-Encroachment Force, Mr. Faizan Karim, who is at present in USA has asked them to get at least rupees one million for his release. Finally, he was released at about 12:55 a.m. on 18.06.2025 after getting a bribe, amounting to rupees one million (Rs.800,000/- during same night and Rs.200,000/- on the surety of Adnan Ansari for payment on next day). He paid Rs.200,000/- very next day through Adnan Ansari to the accused officials of Anti-Encroachment Force Karachi. Subsequently, after 3-4 days he met DSP, Tariq Islam (Police Department posted in Anti-Encroachment Force but now retired) wherein the Sub-Inspector Faizan Karim was also there. He narrated the situation to them and they assured for return of his amount but no action was taken against the officials of Anti-Encroachment Force, nor the amount of bribe was returned to him. He approached the higher forums for return of his amount of rupees one million and necessary action against the accused officials of Anti-Encroachment Force for keeping him in illegal confinement and getting rupees one million for his release but to no avail. Later-on, he came to know that the actual names of Anti-Encroachment Force constables are Hameed Aziz, Umar Farooq and Agha Abdul Wahab. Aggrieved by that, he solicited intervention of this Institution.

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Proceedings

2. The complaint was admitted for investigation u/s 10 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) after receiving mandatory Affidavit on Form "A" and other relevant documents.
3. This office issued a notice vide letter dated 06.10.2025 to the Director, Anti-Encroachment Force Karachi for report, who in response informed vide letter dated 16.10.2025 that the complainant is nominated in the case FIR No.02/2025 registered at Anti-Encroachment Force station Karachi. He has sent complaints to various agencies including the court and the matter is being enquired by an Assistant Director, Anti-Encroachment Force, Karachi.
4. The case was heard on 30.10.2025, attended by Faizan Karim Sub-Inspector (SHO) alongwith alleged constables of Anti-Encroachment Force cell, Hameed Aziz (fake name Nawaz), Umar Farooq (fake name Sarfaraz) and Agha Abdul Wahab (fake name Najeeb). The case was discussed in detail and accused officials informed that the complainant Naseer Illahi Bux is a land grabber and involved in a land grabbing case FIR No.2/2025 alongwith 15 other accused persons. The accused officials denied of getting any bribe from the complainant.
5. The case file has been scrutinized. The complainant had filed a Cr. Misc. Application No.3561 of 2025 in the court of Vth Addl: Sessions Judge, Karachi East for same allegations u/s 22-A and 22-B Cr.PC and the Hon'ble Court has disposed of the case vide orders dated 22.08.2025. The operating para of the order is reproduced as under:

It is settled law that extraordinary relief under Sections 22-A & 22-B Cr.PC cannot be granted to a litigant in a mechanical manner who approaches the court with unclean hands or seeks to misuse the process of law for settling personal scores.

In view of the above discussion, this court is not inclined to exercise discretion in favour of the applicant. Accordingly, the application under Sections 22-A & 22-B Cr.P.C. is hereby dismissed. Order accordingly.

Findings

6. The matter has been adjudicated by the competent court of law, hence, no further action is required by this office.

Decision

7. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of the Ombudsman for the Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of as adjudicated by the court.

Given under my hand and seal of office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 28th November, 2025